

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

PKDC, LLC, *Complainant*

v.

CMA CGM S.A., *Respondent*

DOCKET NO. 24-21

Served: November 18, 2025

ORDER OF: Mary Apostolakos HERVEY, *Administrative Law Judge.*

ORDER GRANTING IN PART JOINT MOTION TO AMEND SCHEDULE

On October 20, 2025, the parties filed a joint motion seeking to amend the scheduling order, which due to the lapse of appropriations between October 1, 2025, and November 12, 2025, was not docketed until November 13, 2025. (Dkt. 39.) By orders dated April 23, 2025, June 23, 2025, and July 23, 2025, the scheduling order was previously extended to allow the parties time to complete review and production of the voluminous discovery propounded in this complex proceeding. (Dkt. 27, 34, 36.)

The parties now request an additional extension of deadlines and require additional time to complete discovery prior to commencing depositions in order to respond to each other's recently served second set of interrogatories and request for production of documents in addition to completing review of the several hundred thousand pages of discovery previously produced. (Dkt. 39.) The parties also seek additional time "to facilitate potential settlement discussions which, if successful, would conserve the resources of both the Commission and the Parties." Finally, the parties state that additional time is required due to the lapse of appropriations resulting in a government shutdown from October 1, 2025, through November 12, 2025. Additional time will be required for the parties to conclude discovery and to file their briefs.

The parties have established that additional time is necessary to complete ongoing discovery and engage in settlement negotiations in advance of conducting depositions and briefing. The undersigned finds that an extension of seventy-five days is reasonable under the circumstances despite that it will necessitate an extension of the deadline to issue an initial decision, which is currently scheduled for November 17, 2025. (Dkt. 28.) The undersigned finds that an extension of 90 days is not reasonable because it would require extension of the initial decision deadline beyond six months from the current deadline. Good cause having been stated, it is hereby ordered that the joint motion be **GRANTED IN PART**. Accordingly, the parties are hereby **ORDERED** to follow this schedule:

January 5, 2026	Disclosure of initial expert reports, if any
January 5, 2026	Last day to serve interrogatories, requests for admission, and RFPs
January 16, 2026	Complete depositions of fact witnesses
January 16, 2026	Disclosure of rebuttal expert reports, if any
February 2, 2026	Complete expert depositions

February 2, 2026	Close of discovery
March 9, 2026	Complainant's initial brief, proposed findings of fact, and appendix
April 8, 2026	Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
April 16, 2026	Complainant's reply and responses to proposed findings of fact

MARY A. HERVEY -S¹ Digitally signed by MARY A. HERVEY -S
Date: 2025.11.18 11:01:16 -05'00'

Mary Apostolakos Hervey
Administrative Law Judge